

26STLC01756 26STLC01756

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-29

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Case Number: 26STLC01756 Hearing Date: July 29, 2026 Dept: 26

TENTATIVE RULING:

Defendant Farzin Fahimi's Motion to Compel Arbitration and Dismiss Action with Prejudice is denied.

Analysis:

On March 16, 2026, Plaintiff Kinecta Federal Credit Union ("Plaintiff") filed the instant action against Defendant Farzin Fahimi ("Defendant") for breach of contract, money lent, and account stated. On April 27, 2026, Defendant filed the instant Motion to Compel Arbitration and Dismiss Action with Prejudice. Plaintiff filed an opposition on July 6, 2026.

Discussion

The Motion is brought pursuant to the Federal Arbitration Act ("FAA"), which provides in relevant part:

A written provision in any maritime transaction or a contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction, or the refusal to perform the whole or any part thereof, or an agreement in writing to submit to arbitration an existing controversy arising out of such a contract, transaction, or refusal, shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract or as otherwise provided in chapter 4.

(9 USC, § 2.) It is alternatively

made pursuant to Code of Civil Procedure section 1281.2 and 1281.7.

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement.

(Code Civ. Proc., §§ 1281.2, subds. (a)-(b).)

Existence of an Arbitration Agreement

Defendant contends that they are alleged in the Complaint to be liable on a consumer credit account that is governed by a Cardmember Agreement. (Motion, p. 9:2-28.)[1]

The Motion goes on to argue that paragraph 43 of the Cardmember Agreement is an arbitration provision. (Ibid.) In support, the Motion attempts to rely on “the accompanying Declaration of Farzin Fahimi,” however, no such declaration is attached or concurrently filed. (See id. at p. 9:5-8.) The Motion, therefore, provides no evidence of the Cardmember Agreement or the purported arbitration provision therein.

Furthermore, Plaintiff disputes that the Cardmember Agreement governs this dispute. It points to the Loan and Security Agreement entered into by the parties as the controlling document. (Opp., Marquez Decl., ¶3 and Exh. A.) The Loan and Security Agreement mentioned in the opposition is the same one upon which the Complaint is based. (Compl., ¶16.) A review of the Loan and Security Agreement attached to the opposition, which reflects the terms alleged in the Complaint, reveals no arbitration provision that binds the parties. Without the existence of an arbitration agreement binding the parties, the Court finds no basis to compel Plaintiff to arbitration or to dismiss the action.

Conclusion

Defendant Farzin Fahimi's Motion to Compel Arbitration and

Dismiss Action with Prejudice is denied.

Judicial Assistant to give
notice.

[1]

The electronically filed Motion has its pages in backwards order.